



improvmx.com Data Processing Agreement

This Data Processing Agreement ("Agreement") forms part of the Contract for Services under the ImprovMX Terms and Conditions (the "Principal Agreement"). This Agreement is an amendment to the Principal Agreement and is effective upon its incorporation to the Principal Agreement, which incorporation may be specified in the Principal Agreement or an executed amendment to the Principal Agreement. Upon its incorporation into the Principal Agreement, this Agreement will form a part of the Principal Agreement.

The term of this Agreement shall follow the term of the Principal Agreement. Terms not defined herein shall have the meaning as set forth in the Principal Agreement.

WHEREAS

- (A) Your company acts as a Data Controller (the "Controller").
- (B) Your company wishes to subcontract certain Services (as defined below), which imply the processing of personal data, to ImprovMX Incorporated, acting as a Data Processor (the "Processor").
- (C) The Parties seek to implement a data processing agreement that complies with the requirements of the current legal framework in relation to data processing and with the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).
- (D) The Parties wish to lay down their rights and obligations.

IT IS AGREED AS FOLLOWS:

1. Definitions and Interpretation

1.1 Unless otherwise defined herein, capitalized terms and expressions used in this DPA shall have the following meaning:

1.1.2 - "Company Personal Data" means any Personal Data Processed by a Contracted Processor on Controller's behalf pursuant to or in connection with the Principal Agreement;

1.1.3 - "Contracted Processor" means a Subprocessor;

1.1.4 - "Data Protection Laws" means EU Data Protection Laws (including UK GDPR law), the Swiss FADP, and, to the extent applicable, the data protection or privacy laws of any other country;

1.1.5 - "EEA" means the European Economic Area;

1.1.6 - "EU Data Protection Laws" means EU Directive 95/46/EC, as transposed into domestic legislation of each Member State and as amended, replaced or superseded from time to time, including by the GDPR and laws implementing or supplementing the GDPR;

1.1.7 - "GDPR" means EU General Data Protection Regulation 2016/679, as well as the "UK GDPR" equivalent in the United Kingdom.

1.1.8 - "Data Transfer" means:

1.1.8.1 - a transfer of Company Personal Data from Controller to a Contracted Processor; or

1.1.8.2 - an onward transfer of Company Personal Data from a Contracted Processor to a Subcontracted Processor, or between two establishments of a Contracted Processor, in each case, where such transfer would be prohibited by Data Protection Laws (or by the terms of data transfer agreements put in place to address the data transfer restrictions of Data Protection Laws);

1.1.9 - "Services" means the email forwarding and email sending services provided by Processor under the Principal Agreement. The Service is described more in detail in Schedule 1.

1.1.10 - "Subprocessor" means any person appointed by or on behalf of Processor to process Personal Data on behalf of Controller in connection with the Agreement.

1.1.11 - "EU SCCs" means the standard contractual clauses annexed to Commission Implementing Decision (EU) 2021/914 of 4 June 2021, as amended or replaced from time to time.

1.1.12 - "UK Addendum" means the International Data Transfer Addendum to the EU Commission Standard Contractual Clauses issued by the UK Information Commissioner under section 119A of the Data Protection Act 2018 (version B1.0, in force 21 March 2022), as amended or replaced from time to time.

1.1.13 - "Swiss FADP" means the Swiss Federal Act on Data Protection of 25 September 2020 and its implementing ordinance, as amended or replaced from time to time.

1.2 The terms, "Commission", "Controller", "Data Subject", "Member State", "Personal Data", "Personal Data Breach", "Processing" and "Supervisory Authority" shall have the same

meaning as in the GDPR, and their cognate terms shall be construed accordingly.

2. Processing of Company Personal Data

2.1 Processor shall:

2.1.1 - comply with all applicable Data Protection Laws in the Processing of Company Personal Data; and

2.1.2 - not process Company Personal Data other than on Controller's documented instructions.

2.2 - Controller instructs Processor to process Company Personal Data to provide the Services and related technical support.

3. Processor Personnel

Processor shall take reasonable steps to ensure the reliability of any employee, agent or contractor of any Contracted Processor who may have access to Company Personal Data, ensuring in each case that access is strictly limited to those individuals who need to know / access the relevant Company Personal Data, as strictly necessary for the purposes of the Principal Agreement, and to comply with Applicable Laws in the context of that individual's duties to the Contracted Processor, ensuring that all such individuals are subject to confidentiality undertakings or professional or statutory obligations of confidentiality.

4. Security

4.1 Taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of Processing as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons, Processor shall in relation to the Company Personal Data implement appropriate technical and organizational measures to ensure a level of security appropriate to that risk, including, as appropriate, the measures referred to in Article 32(1) of the GDPR.

4.2 In assessing the appropriate level of security, Processor shall take account in particular of the risks that are presented by Processing, in particular from a Personal Data Breach.

5. Subprocessing

5.1 Authorized Subprocessors. Controller agrees that ImprovMX.com may engage Subprocessors to process Controller Data on Controller's behalf. The Subprocessors currently engaged by ImprovMX.com and authorized by Controller are listed in Exhibit A.

5.2 Subprocessor Obligations. ImprovMX.com shall: (i) enter into a written agreement with the Subprocessor imposing data protection terms that require the Subprocessor to protect the Controller Data to the standard required by Data Protection Laws; and (ii) remain responsible for its compliance with the obligations of this DPA and for any acts or omissions of the Subprocessor that cause ImprovMX.com to breach any of its obligations under this DPA.

5.3 Changes to Subprocessors. Processor maintains the current list of Subprocessors at the address set out in Exhibit A. Processor shall give Controller at least fourteen (14) days' prior notice of the addition or replacement of a Subprocessor by updating that list and by notice under section 12.2. Controller may object on reasonable grounds relating to data protection within that period. Where the Parties are unable to resolve the objection, Controller's sole and exclusive remedy is to terminate the Principal Agreement in respect of the affected Services on written notice, without penalty. Where Processor must replace a Subprocessor urgently for reasons outside its control, Processor shall give notice as soon as reasonably practicable.

6. Data Subject Rights

6.1 Taking into account the nature of the Processing, Processor shall assist Controller by implementing appropriate technical and organisational measures, insofar as this is possible, for the fulfilment of Controller obligations, as reasonably understood by Controller, to respond to requests to exercise Data Subject rights under the Data Protection Laws.

6.2 Processor shall:

6.2.1 - promptly notify Controller if it receives a request from a Data Subject under any Data Protection Law in respect of Company Personal Data; and

6.2.2 - ensure that it does not respond to that request except on the documented instructions of Controller or as required by Applicable Laws to which the Processor is subject, in which case Processor shall to the extent permitted by Applicable Laws inform Controller of that legal requirement before the Contracted Processor responds to the request.

7. Personal Data Breach

7.1 Processor shall notify Controller without undue delay upon Processor becoming aware of a Personal Data Breach affecting Company Personal Data, providing Controller with sufficient information to allow Controller to meet any obligations to report or inform Data Subjects of the Personal Data Breach under the Data Protection Laws.

7.2 Processor shall co-operate with Controller and take reasonable commercial steps as are directed by Controller to assist in the investigation, mitigation and remediation of each such Personal Data Breach.

8. Data Protection Impact Assessment and Prior Consultation

8.1 Processor shall provide reasonable assistance to Controller with any data protection impact assessments, and prior consultations with Supervising Authorities or other competent data privacy authorities, which Controller reasonably considers to be required by article 35 or 36 of the GDPR or equivalent provisions of any other Data Protection Law, in each case solely in relation to Processing of Company Personal Data by, and taking into account the nature of the Processing and information available to, the Contracted Processors.

9. Deletion or return of Company Personal Data

9.1 Subject to this section 9 Processor shall promptly and in any event within 10 business days of the date of cessation of any Services involving the Processing of Company Personal Data (the "Cessation Date"), delete and procure the deletion of all copies of those Company Personal Data.

9.2 Processor shall provide written certification to Controller that it has fully complied with this section 9 within 10 business days of the Cessation Date.

9.3 Sections 9.1 and 9.2 do not apply to Company Personal Data contained in routine backups or archives, which are deleted in accordance with Processor's backup cycle and are not restored to production use in the meantime, or to Company Personal Data Processor is required to retain by Applicable Laws. Processor shall continue to protect such data under this Agreement for as long as it is retained.

10. Audit rights

10.1 Subject to this section 10, Processor shall make available to Controller on request all information necessary to demonstrate compliance with this Agreement, and shall allow for and contribute to audits, including inspections, by Controller or an auditor mandated by Controller in relation to the Processing of the Company Personal Data by the Contracted Processors.

10.2 Information and audit rights of Controller only arise under section 10.1 to the extent that the Agreement does not otherwise give them information and audit rights meeting the relevant requirements of Data Protection Law.

11. Data Transfer

11.1 Authorisation for transfers. Controller acknowledges that Processor is established in the United States and that provision of the Services involves the transfer of Company Personal Data to, and its processing in, the United States and other countries outside the EEA, Switzerland and the United Kingdom, as described in Annex I. Controller authorises those transfers, subject to Processor maintaining the safeguards in this section 11.

11.2 EU Standard Contractual Clauses. Where Company Personal Data is transferred from the EEA to a country not subject to an adequacy decision, the EU SCCs are incorporated into this Agreement by reference and apply to that transfer, with the following elections:

- (a) Module Two (controller to processor) applies where Controller acts as a controller, and Module Three (processor to processor) applies where Controller acts as a processor on behalf of a third party controller;
- (b) Clause 7 (docking clause) does not apply;
- (c) in Clause 9(a), Option 2 (general written authorisation) applies, and the notice period is that set out in section 5.3;
- (d) in Clause 11(a), the optional independent dispute resolution paragraph does not apply;
- (e) in Clause 17, Option 1 applies and the governing law is the law of Ireland;
- (f) in Clause 18(b), the chosen forum is the courts of Ireland;
- (g) Annexes I, II and III to the EU SCCs are Annexes I, II and III to this Agreement respectively.

Controller is the "data exporter" and Processor the "data importer". Execution of this Agreement by both Parties constitutes execution of the EU SCCs.

11.3 United Kingdom. Where Company Personal Data is transferred from the United Kingdom, the UK Addendum is incorporated by reference and applies. For Tables 1 to 3, the parties, version, modules, clauses and Appendix Information are those set out in section 11.2 and Annexes I to III. For Table 4, the Importer may end the UK Addendum as set out in Section 19 of it.

11.4 Switzerland. Where Company Personal Data is transferred from Switzerland, the EU SCCs apply as incorporated by 11.2, subject to: (a) references to the GDPR are read as references to the Swiss FADP to the extent it applies; (b) the competent supervisory authority is the Swiss Federal Data Protection and Information Commissioner; (c) "Member State" must not be interpreted so as to exclude data subjects in Switzerland from bringing proceedings in their place of habitual residence under Clause 18(c).

11.5 Conflicts and precedence. In the event of conflict between this Agreement and the EU SCCs or the UK Addendum, those clauses prevail in respect of the transfers they govern. This Agreement, together with those clauses and Annexes I to III, constitutes the entire agreement of the Parties in respect of the processing of Company Personal Data and

supersedes any other data processing terms, standard contractual clauses or annexes proposed by either Party.

12. General Terms

12.1 Confidentiality. Each Party must keep any information it receives about the other Party and its business in connection with this Agreement ("Confidential Information") confidential and must not use or disclose that Confidential Information without the prior written consent of the other Party except to the extent that:

- (a) disclosure is required by law;
- (b) the relevant information is already in the public domain.

12.2 Notices. All notices and communications given under this Agreement must be in writing and will be sent by email. Controller shall be notified by email sent to the address related to its use of the Service under the Principal Agreement. Processor shall be notified by email sent to the address: support@improvmx.com

13. Governing Law and Jurisdiction

13.1 This Agreement is governed by the laws of the State of Delaware, United States of America, without regard to its conflict of laws provisions.

13.2 Any dispute arising in connection with this Agreement which the Parties are unable to resolve amicably will be submitted to the exclusive jurisdiction of the courts of the State of Delaware, USA.

13.3 Section 13.1 and 13.2 do not apply to disputes arising from the EU SCCs or the UK Addendum incorporated by section 11. Those disputes are governed by the law and subject to the forum elected in section 11.2(e) and (f) or, for the UK Addendum, by the law and forum set out in that Addendum. Sections 13.1 and 13.2 continue to govern all other disputes under this Agreement.

Schedule 1: Service Description

The Service offered by ImprovMX Incorporated is ImprovMX ("ImprovMX"). ImprovMX offers email forwarding with an easy to use interface that is used by individuals and enterprises around the world. ImprovMX provides a complete platform that includes both server-side software and client-side applications via a web interface. ImprovMX is cross platform and can be used on all devices without needing software downloads or updates, allowing authorized users access to their accounts anywhere in the world, on any device.

Parties

Customer (the "Controller")

Company Name	_____
Company Address	_____
Registration Number	_____
Represented By	_____
Title	_____
Email	_____
Date	_____
Signature	_____

Provider (the "Processor")

Company Name	ImprovMX Incorporated
Company Address	8 The Green STE D Dover, DE 19901 United States of America
Registration Number	EU372078719
Represented By	Matthew Tse
Title	CEO
Date & Place	September 9th 2026 in New York, USA
Signature	

Exhibit A

List of ImprovMX.com Subprocessors

You can find an updated list of ImprovMX subprocessors at <https://improvmx.com/transparency/privacy-policy#third-party-links-and-sub-processors>

These subprocessors provide cloud hosting and storage services; content delivery and review services; assist in providing customer support; as well as incident tracking, response, diagnosis and resolution services.

ANNEX I

A. List of Parties

Data exporter: the Controller, as identified in the signature block in Schedule 1. Activities relevant to the data transferred: receipt of the Services described in Schedule 1. Role: controller (Module Two); processor (Module Three).

Data importer: ImprovMX Incorporated, 8 The Green STE D, Dover, DE 19901, United States of America. Contact: Matthew Tse, CEO — support@improvmx.com. Activities relevant to the data transferred: provision of the Services described in Schedule 1. Role: processor (Module Two); sub-processor (Module Three).

Signature and date: as set out in the signature blocks in Schedule 1.

B. Description of Transfer

Categories of data subjects: senders of email to addresses at domains configured by the data exporter; recipients at destination addresses configured by the data exporter; the data exporter's account users.

Categories of personal data: sender and recipient email addresses; email content and attachments, for the duration of delivery only; subject lines; connecting server IP address and reverse DNS name; delivery event data; account and billing data.

Sensitive data: the Services do not require the transfer of special categories of personal data. The data exporter determines the content of email transmitted through the Services.

Frequency: continuous, for the term of the Principal Agreement.

Nature of processing: reception, filtering, transient storage, routing and delivery of email; storage of delivery metadata; technical support; account administration and billing.

Purpose: provision of the Services in accordance with the data exporter's instructions under section 2.2.

Retention: email content and attachments are deleted following delivery; delivery metadata after 7 days; account activity records after 365 days; account and billing data for the duration of the account and thereafter as required by law. Backups are deleted in accordance with section 9.3.

Sub-processor transfers: subject matter, nature and duration as set out in Annex III.

C. Competent Supervisory Authority

Where the data exporter is established in an EEA Member State, the supervisory authority of that Member State; otherwise the supervisory authority of the Member State in which the relevant data subjects are located, as notified under Clause 13. For transfers subject to the Swiss FADP, the Swiss Federal Data Protection and Information Commissioner. For transfers subject to the UK GDPR, the Information Commissioner's Office.

ANNEX II

Technical and Organisational Measures

These are the measures implemented by the data importer as at the date of this Agreement. The data importer may modify or replace them provided there is no material reduction in the overall level of security of the Services. The data importer does not hold SOC 2, ISO 27001 or equivalent third party certification and makes no representation that it does.

Encryption: TLS is used for SMTP connections where the peer server supports it. Encryption at rest is applied to stored data. The web interface and API are served over HTTPS.

Minimisation: email content and attachments are stored transiently pending delivery and deleted following delivery. Message content is never written to application logs. Retention limits are enforced by automated scheduled deletion at the periods stated in Annex I.B.

Access control: access to production infrastructure is restricted to authorised personnel, with permissions separated across services. Administrative access is made over key-based authenticated connections through a controlled access host. Personnel are subject to the confidentiality obligations in section 3.

Integrity and abuse prevention: inbound mail is subject to spam, malware and abuse filtering. SPF, DKIM and DMARC are evaluated on inbound mail and applied to outbound mail. Sending activity is monitored, with automated rate limiting and suspension controls.

Incident response: Personal Data Breaches are notified in accordance with section 7.

Sub-processors: engaged under written agreements imposing data protection terms in accordance with section 5.2, as listed in Annex III.

ANNEX III

A. List of Sub-processors

The data exporter authorises the engagement of the following sub-processors, which process email content or email metadata directly:

Amazon Web Services — Amazon Web Services, Inc., 410 Terry Avenue North, Seattle, WA 98109, United States. Inbound reception, transient message storage, application and database hosting. Country of processing: France (eu-west-3, Paris).

Scaleway — Scaleway SAS, 8 rue de la Ville l'Évêque, 75008 Paris, France. Outbound delivery. Country of processing: France.

PhoenixNAP — PhoenixNAP LLC, 3402 E University Drive, Phoenix, AZ 85034, United States. Outbound delivery. Country of processing: United States (Virginia).

Servers.com — Servers.com, Inc., 2777 N. Stemmons Freeway, Suite 1655, Dallas, TX 75207, United States. Outbound delivery. Country of processing: United States (Texas).

The data importer engages further sub-processors which do not process email content. The current full list is maintained at the address set out in Exhibit A. Changes are notified in accordance with section 5.3.

B. Onward Transfers

The data importer imposes data protection obligations on each sub-processor in accordance with section 5.2. Where a sub-processor is established outside the EEA or processes Company Personal Data outside the EEA, the data importer shall ensure that an appropriate transfer mechanism under Chapter V of the GDPR applies to that transfer, including standard contractual clauses adopted by the European Commission where applicable.

C. Location of Processing

The data importer's infrastructure is not segmented by customer country. Inbound email is received and stored transiently in France. Outbound delivery is performed by the infrastructure listed in Annex III.A, which includes infrastructure located in the United States. Email content transmitted through the Services may therefore be processed in the United States in the course of delivery, irrespective of where the data exporter or the data subjects are established.